

**PR-26-000222 ESTATE OF RUIZ, LILA JENNIE – Petitioner Frank Martinez’s Motion to Strike Misleading, Irrelevant, False, and Prejudicial Allegations from Response and Objections to Petition of Frank Martinez for Letters of Administration - DENIED.**

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: Petitioner Frank Martinez’s Motion to Strike Misleading, Irrelevant, False, and Prejudicial Allegations from Respondent Francine McLean’s Response and Objections to Petition for Letters of Administration is DENIED for the reasons set forth below. The challenged allegations concern Petitioner’s alleged prior criminal conduct and are offered in support of respondent’s contention that petitioner is not competent or suitable to serve as personal representative under Probate Code §§ 8402 and 8502. As such, the allegations bear on issues currently before the Court and are facially relevant. Further, Petitioner has not established through competent evidence that the challenged allegations are false as a matter of law. Petitioner’s declaration creates, at most, a factual dispute concerning the nature, disposition, and significance of the prior events. Such factual disputes are not appropriately resolved through a motion to strike. The Court will determine, in connection with the competing petitions for appointment of a personal representative, what weight, if any, should be afforded to the challenged allegations and any evidence supporting or refuting them. No order striking any portion of Respondent’s Response and Objections will issue. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23: \*\*\*There are no tentative rulings in Department 23\*\*\* The following are the tentative rulings for cases calendared before Judge David Hood in Department 24:

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PR-26-000222 – ESTATE OF RUIZ, LILA JENNIE – Petitioner Frank Martinez’s Motion to Strike Misleading, Irrelevant, False, and Prejudicial Allegations from Response and Objections to Petition of Frank Martinez for Letters of Administration - DENIED.

Petitioner Frank Martinez’s Motion to Strike Misleading, Irrelevant, False, and Prejudicial Allegations from Respondent Francine McLean’s Response and Objections to Petition for Letters of Administration is DENIED for the reasons set forth below.

The challenged allegations concern Petitioner’s alleged prior criminal conduct and are offered in support of respondent’s contention that petitioner is not competent or suitable to serve as personal representative under Probate Code §§ 8402 and 8502. As such, the allegations bear on issues currently before the Court and are facially relevant.

Further, Petitioner has not established through competent evidence that the challenged allegations are false as a matter of law. Petitioner’s declaration creates, at most, a factual dispute concerning the nature, disposition, and significance of the prior events. Such factual disputes are not appropriately resolved through a motion to strike.

The Court will determine, in connection with the competing petitions for appointment of a personal representative, what weight, if any, should be afforded to the challenged allegations and any evidence supporting or refuting them.

No order striking any portion of Respondent’s Response and Objections will issue.

The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

\*\*\*There are no tentative rulings in Department 23\*\*\*

The following are the tentative rulings for cases calendared before Judge David Hood in Department 24: